

Malderus Tract. de Summo Pontifice (EN)

De Virtutibus Theologicis Commentaria — Tractatus de Summo Pontifice, Disp. IV Dub. III (Tertia Obiectio) et Disp. V (*Commentaries on the Theological Virtues*)

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English translation of the Tractatus de Summo Pontifice, Disp. IV Dub. III (the third objection-block with its solutions) and Disp. V entire (pp. 41–44), transcribed from the page images of the 1616 edition, with independent adversarial review; translated 1:1.

Disp. IV, Dub. III — Third Objection (pp. 41–42)

{marg. *Objections from reason.*} {marg. 1.} The third objection is from reason and history. For they say that Pope Marcellinus was judged by the Council of Sinuessa, from the acts of the Council, which read thus: *Marcellinus in the sight of the Council fell to the ground; there, therefore, as he lay and drew out delay, they condemned him.*

{marg. 2.} Likewise they object that Honorius was condemned by the Sixth Synod.

{marg. 3.} They also cite Platina, writing thus on Gregory VI: *Henry, coming into Italy with a great army, and having held a Synod, compelled Benedict, Sylvester, and Gregory, three monsters, to abdicate their office.*

{marg. 4.} They add that the laws of General Councils bind the supreme Pontiff even coercively: for since it had been established by the ancient Canons that one excommunicated by one Bishop should not be received by another, Marcion, excommunicated by his own Bishop and fleeing to Rome, was rejected by the

Roman Church, this being alleged, that it would be unlawful for him to be received into communion without the consent of his own Bishop. So Epiphanius on the heresy of Marcion, which is the 42nd.

{marg. 5.} Moreover, the whole, they say, is greater than its part, the world greater than the city; therefore a Council, which represents the whole universal Church, is greater than the Pontiff, who is only a part of the Church.

{marg. 6.} Furthermore, a Pope suspected of heresy is judged by a Council. And yet it is not immediately upon his being suspected of heresy that he ceases to be Pope, or must be shunned as excommunicated; but after a first and second correction, which the Synod would have to make from its authority over the Pope.

{marg. 7.} There is added the fact that it is read that the Council of Constantinople and that of Chalcedon by their decrees bestowed privileges upon the Roman Pontiff; which would not be so, unless it had been theirs to give law even to the Roman See.

{marg. *Resp. ad 1.*} I answer that the Synod of Sinuessa is for us, as one which openly says that the first See is judged by no one, as is established from the acts of the Synod, and from the epistle of Pope Nicholas to the Emperor Michael. If therefore it condemned Marcellinus, it did not do so before he had condemned himself and abdicated the Pontificate.

{marg. *Ad 2.*} Concerning Honorius there is no difficulty in the matter at hand: for in a cause of heresy we confess that the Pontiff can be judged by a Council; although whether Honorius or any other Roman Pontiff was truly a heretic, we shall discuss below.

{marg. *Ad 3.*} But to the deed of Henry I answer that here we contend only that a Synod cannot judge concerning an undoubted Pontiff, as though he were subject to it; leaving undecided whether in a schism, when it is doubtful who is the true Pontiff, and several pretend that they have been legitimately elected, a General Synod can compel such ambiguous Pontiffs to renounce their pretended right.

{marg. *Ad 4.*} To the history of Marcion I answer that we confess that even the Pontiff and the Roman Church, directively at least, are bound by the laws of Ecumenical Councils, and may not licitly dispense from them without cause: and it is established that this could have been the reason why the Romans did not think it lawful for them to receive Marcion, excommunicated by his own Bishop.

{marg. *Ad 5.*} But as to what is urged, that the world is greater than the city: we confess that the body is greater in bulk than the whole head, but the head is greater in power than the rest of the body.

{marg. *Ad 6.*} But how a Council may judge concerning a Pope suspected of heresy, we shall say below.

{marg. *Ad 7.*} Finally, we deny it to be true that the Synod of Constantinople or that of Chalcedon granted privileges to the Roman Church: although from a bad understanding of Canon 6 of Nicaea, which Nicholas refutes in the said epistle to the Emperor Michael, the Patriarch of Constantinople and the Emperor attempted to persuade this by a supposititious and adulterated Canon. For after, by their importunity, they had obtained for the see of Constantinople the second place after the Roman, not without injury to the see of Alexandria, they wished by an ambitious interpretation to advance so far that the see of Constantinople should be not second after the Roman, but as it were a second Rome, that is, equal to the Roman: and in order to obtain this, they alleged that these privileges of rank are of human right, and that this Ecclesiastical honor could have accrued to Constantinople along with the Imperial.

DISPUTATION V (pp. 42–44)

DISPUTATION V.

Whether the Roman Pontiff can err in deciding questions of faith?

We do not here ask whether he can err as a particular doctor; for Catholics grant this: although whether it ever happens that even thus he is a heretic, is doubtful among them; of which in disputation 7. Nor do I ask whether he can err when together with a Universal Council he defines something as *de fide*; which all Catholics deny, but the heretics affirm, to be refuted in the treatise on Councils. But properly we ask here whether the Pontiff can err when he defines something concerning the faith from the chair, outside a General Council. This can be done with no one called in, or with only certain extraordinary persons employed who

please the Pontiff; or with the ordinary ones employed and consulted, namely the college of Cardinals, or those certain persons upon whom it falls by office to be of assistance to the Pontiff in examining and deciding questions of faith. Nor is there need here to premise another disputation, whether it belongs to the Pontiff to determine controversies of faith: for if in determining them his judgment is certain and infallible, it is certain that this has been divinely committed to him, as even the heretics confess.

It seems that it must altogether be answered that the supreme Pontiff cannot by his Pontifical authority propose to the Church any error in the faith. Whence it must consequently be said, either that the Pontiff cannot define an error even without counselors taken on to examine the matter; or rather that he is so directed by the providence of God that he never defines from the chair except with due counselors employed, and a legitimate inquiry premised: so that he not only always defines the truth, but also observes the legitimate manner in defining it. By due and legitimate counselors, moreover, I here understand, disjunctively, either those upon whom it falls by office to assist the Pontiff in such matters; or others fit for it, taken on extraordinarily at the Pontiff's discretion.

Alphonsus à Castro, *de iusta hæreticorum punitione* lib. 1. cap. 4., is cited to the contrary by some. But he does not seem to dissent much, because he only holds that counselors ought to be taken on by a just selection, without faction and fraud, the more fit not being excluded as less favorable to a preconceived opinion: nor does he restrict the Pontiff to the Cardinals. In this he has followed, almost word for word, Joannes de Turrecremata, lib. 2. *de Ecclesia*, cap. 112., who has as his authority the Archdeacon on the chapter *Sic omnes*, dist. 19. Since that chapter has it that all the sanctions of the Apostolic See are to be received as though they were confirmed by the voice of the divine Peter himself, Turrecremata praises the Archdeacon for having cautiously noted that that chapter said *of the Apostolic See*, and not *of Apostolic sanctions*.

A certain other author is cited, who taught that Pontiffs, even in answering *ex officio*, have erred in the faith, but that the errors were corrected by their successors, and that the correction reached the Church before the errors. From this opinion Adrian VI seems not to have been averse, in his response to the 2nd principal, toward the end of the *qu. de Confirmatione*. For he writes thus: *If by the*

Roman Church be understood its head, namely the Pontiff, it is certain that he can err, even in those things which touch the faith, by asserting heresy through his determination or decretal.

But I judge either that the opinion of these authors is not true, if it be taken in the sense in which Gerson and certain other Parisians say that the Pontiff, defining something outside a General Council, can err — nay, that it is improbable, although it is not yet openly heretical; or that it is not to be taken of a Pontifical definition from the chair; for not all things which the Pontiff, even when consulted as Judge, writes or writes back as a learned man and one having power, are straightway to be held for a definition of the Apostolic See. For supreme Judges are wont to command certain things while the suit is still pending, before they pronounce sentence, by which they favor that party toward which they themselves, as private persons, are inclined.

These things being established, our response is proved, which says three things: that the Pontiff does not err in deciding questions of faith; that he ought in this to employ the inquiry of prudent men; and that the Pontiff never rashly, without a legitimate consultation of this kind, proposes anything to the Church by his definition from the chair. The first is proved from Luke 22, where the Lord says to Peter: *I have prayed for thee, Peter, that thy faith fail not: and thou, being once converted, confirm thy brethren.* Here we have it that the faith of Peter does not fail; which can be taken in various senses. First, so that it be signified that faith would never fail from the heart of Peter as he was a particular person. Secondly, so that it be signified that faith would never fail from the heart of Peter as he was the universal Pastor, and so neither from the heart of his successors — in such wise, namely, that the Pope should be an interior heretic, and should desire to propose his heresy to the Church. Thirdly, so that it be signified that in very deed the faith of the supreme Pontiff would never fail in the act by which he proposes to the Church the things to be believed, or in such wise that he should bear himself as a heretic in the very definition of the faith. Fourthly, so that it be signified that faith will never fail from the universal fold of Peter himself, or from the universal Church. Fifthly, so that it be signified that it would never fail from his own see or diocese, which Peter had peculiarly undertaken to govern. Sixthly, so that it be signified that the faith would never fail which Peter first explicitly confessed, saying: *Thou art Christ, the Son of the living God*; as in Councils the acclamation is wont to be made, *This is the faith of Peter*. Seventhly, so that it be signified that Peter's faith would not fail finally, that is, so that it be signified that Peter was

predestined to have the faith at least in death, if at some time in life he should have lost it; or at any rate, if his faith should fail, that he would straightway recover it: which sense the sectaries of today especially commend. But whatever be the case with the other senses, that the third sense, which suffices for our purpose, is not beside Christ's intention, is evident from the common explanation of the Fathers. See Leo, sermone 3. de anniuersario die suæ assumptionis. Cyprian seems to have looked to this, libro 1. epistola 3., when he says that perfidy has no access to the Romans: and Epiphanius in the Ancoratus, when he says that in Peter's ministry all the subtleties of the faith are found. Bernard agrees, epistola 190. Other places of Scripture make for this, by which the supreme Pontificate of Peter is established. For by that very fact all are commanded to hear his voice and that of his successors as that of the pastor; and so to receive whatever they shall have judged should be proposed as of faith. But it would be absurd for God to command that we believe one who errs. The keys also of the kingdom of heaven indicate this prerogative. For rightly does Theodore the Studite, in his epistle to Naucratus, write thus against the Iconoclasts: *They have cut themselves off from the body of Christ and from the chief See, in which Christ placed the keys of the faith, against which the gates of hell have not prevailed, nor shall they prevail.*

Nor is there ground for them to object that to the successors of James and of the others also the care of feeding the sheep was committed, and in turn it was commanded to the sheep that they obey them; who nevertheless, it is established, have fallen away from the faith. For the case of the Vicar of Christ is different, with whom alone Christ willed there to reside the infallible authority of deciding controversies of faith arising among Bishops, lest the Church have anything less than was granted to the Synagogue, Deuteronomy 17. The Bishops, therefore, must be heard so long as they preach Catholicly and orthodoxly; but the Pope, when it shall be doubtful whether a Bishop teaches rightly. The same is confirmed by various chapters, 24. qu. 1. By the chapter In sede; the chapter Memor; the chapter Hæc est fides; finally the chapter Directa; where we read thus: *This holy and Apostolic mother of all the Churches of Christ, the Church which, through the grace of almighty God, is proved never to have erred from the path of Apostolic tradition.* Bernard has similar things at the beginning of epistola 190: *For I deem it fitting that the losses of the faith be repaired there above all, where faith cannot suffer failure. For this indeed is the prerogative of this see. For to what other was*

it ever said: I have prayed for thee, Peter, that thy faith fail not? The authorities of Basil, of Theodoret, of the Council of Sardica, and of other Fathers for this matter may be seen in Turrianus, lib. 3 dogmaticorum characterum.

The second part of the response — that the Pontiff is bound, before a decision, to employ the counsel and inquiry of prudent and intelligent men, after the manner of our forefathers and according to the Ecclesiastical rule — is manifest; because even General Councils do not define except as, for a pattern to posterity, was done in the first Council of Jerusalem, a great inquiry having gone before.

The third part, finally — that in this inquiry the Pontiff, when he defines from the chair, is never wanting to his office, as Bellarmine well says — follows from this, that the infallibility of judgment has been promised by God to the Apostolic See; with this added, that this inquiry is as it were a necessary means of the infallible judgment: for he who promises the end promises also the necessary means.

Castro, cited above, lib. 1. cap. 6., raises a doubt: whether the Pope can infallibly determine controversies of faith not only by himself, but also through another; so that the judgment of him to whom the Pope shall have committed such a determination — say, of a Legate — would also be equally infallible. And he answers that he cannot, and that no one has ever held the contrary: for the Lord prayed not for Peter's legates or commissaries, but for Peter, that his faith should never fail.

{marg. *Objection.*} They object that the Lord did indeed pray for the faith of Peter, but not because he was to be the supreme Pastor; rather because he, more than the rest, was about to fall.

{marg. *Respons.*} I answer: That this cannot be said, the following words prove: *And thou, being once converted, confirm thy brethren.* For by these words it is signified that Christ prayed not so much for the personal faith of Peter himself, as for the faith of Peter as Pastor, who by his unfailing faith would confirm the whole flock of Christ. Whence it is also understood that in Peter he prayed at the same time for the faith of his successors: for the confirmation of the whole flock demanded, as it demanded a succession of supreme Pastors, so also this, as it were hereditary, immobility in their faith. But the heretics endeavor to explain those words otherwise, as if it were signified that Peter would edify and confirm, by his conversion, the brethren whom he had scandalized by his fall. But although this too can be understood to be insinuated there, nevertheless the Lord, as we have said,

looked further: which that word *once* plainly indicates; for it is the same as to say, whenever there shall be need. Not therefore once only, when, converted, he wept bitterly, but as often as there was need, the faith of Peter, confirmed against the sifting of Satan and the gates of hell, confirms the brethren. {marg. *See Maldonatus on Luke 22.*} Nor is the exposition of those to be passed over here, who hold that that word *converted* is the same as *again*; so that the sense is: As I, by praying for thee, have confirmed thy faith, so do thou in turn confirm thy brethren; for to this end art thou firm, that thou mayest confirm. Whom the Venerable Bede somewhat favors.

{marg. *Objection.*} They object, secondly, that Christ did not pray that Peter's faith should never suffer failure, but that it should not fail in the end. Which they prove, because Peter lost the faith when he denied Christ; or at any rate when Christ rebuked him with the others for incredulity, when with the others he asked: *Lord, wilt thou at this time restore again the kingdom of Israel?* Finally, when, not walking according to the truth of the Gospel, he compelled the Gentiles to Judaize.

{marg. *Respons.*} I answer that Peter as Pastor never taught any error against the faith, and that this privilege has passed to his successors in the Roman See: nay — although this is not necessary to our purpose — neither as a private person did Peter ever err against the faith; although by denying Christ he sinned gravely against the confession of the faith, and so lost charity, fidelity, and formed faith. For Euthymius explains that Christ prayed that Peter might not lose the faith at the time of his denial: so that, not badly, Christ may be understood to have asked both things here — both that the faith of Peter, and that the faith of the Pastor, should not fail; which latter would pertain also to Peter's successors. Peter therefore never lost the faith, although by incautious conduct, at Antioch, he was reprehensible concerning the observance of the legal ceremonies, which according to the truth of the Gospel had then ceased to bind. But when the disciples ask about the time of the restoration of Israel, that question was indeed superfluous, but not unbelieving. Also, their incredulity rebuked in Mark is not infidelity, but a certain imperfection of faith; such as was that of him who said: *I do believe, Lord: help my unbelief.* Or if indeed it was incredulity, it was not Peter's: for to Peter the women's account of the Resurrection did not seem an idle tale, but, as Luke relates, having heard it he ran to the sepulchre.

{marg. *Obiect.* 3.} They object, thirdly, that the supreme Pontiff of the Old Testament could err, and indeed did err, when with the whole Council he pronounced that Christ was a blasphemmer and was to be put to death.

{marg. *Respons.*} I answer that the Priesthood of the Old Testament was movable, and did not have the promise of eternal stability, as the rock of the Church has. Yet so long as that old tabernacle endured, Christ willed that those who sat upon the chair of Moses should be heard: but when Caiphas pronounced a blasphemous sentence against the Saviour, he fell from the Pontificate — nay, the Pontificate of the Old Testament was destroyed; in sign of which he himself rent his garments, as Leo says, serm. 6. de passione Domini. For after that time the Sadducees seem to have been admitted into the council, as is gathered from Acts, cap. 4.; nay, in c. 5. they are shown to have occupied the priestly seat, as Hesselius rightly observes, de cathedra Petri, c. 7.

{marg. *Obiect.* 4.} It is objected, fourthly: It is not of faith that this Pontiff is a true Pontiff; therefore his determinations will never be *de fide*. The antecedent is proved: because it is not *de fide*, nor is it otherwise altogether most certainly established, that he has truly been baptized, and hence neither whether he is capable of the Episcopal dignity. The consequence is proved: for when we can doubt about the antecedent, we can also doubt about the consequent.

{marg. *Respons.*} I answer that, for the solution of this argument, it is not necessary to say that it is of faith that this Pontiff is truly Pontiff. For if this were necessary, it would also be necessary to confess, not only that it is probable that this is of faith, but that it is most certain: for otherwise the same difficulty will return. For if it be only probable that it is of faith that this man is the true Pontiff, it will likewise be said that it will be no more than probable that his definition is *de fide*.

I answer, therefore, rather by denying the consequence. For in order that what the Pope determines be of faith, it is not required that it be of divine faith that he who determines is the true Pontiff; it suffices that this be most certain. Now it is most certain that he whom the universal Church receives as Pontiff is the true Pontiff. For it pertains to the providence of God to prevent the Church from being deceived in a judgment of this kind. In vain, therefore, do new men, certain blasphemous apostates, raise a doubt about the legitimate election of the Pontiffs of this age, whom they have found adverse to themselves. Received by the Catholic Church, they are beyond the hazard of this calumny. But that it suffices that it be altogether

certain, even if it be not of faith, I prove: Because the certitude of faith depends on the veracity of God saying that which is believed; but the Pope does not make new articles of faith, but only proposes that God at some time said this or that. Now it was said above that, in those things which concur to the proposition and credibility of the faith, a certitude in all respects equal to the certitude of faith is not to be demanded; but that it suffices that the credibility be made evident through arguments of such a kind as indeed cannot deceive, yet are not believed by divine faith. For this suffices not only for the infallibility of faith, but also for the obligation; so that he who does not believe incurs the sin of heresy or of infidelity.

[Ends before DISPVTATIO VI. on printed p. 44.]